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REGULATION Nº 013/R/EC-ICT/RURA/2021 OF 25/02/2021 GOVERNING LICENSING IN ELECTRONIC COMMUNICATION

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The Regulatory Board;

Pursuant to Law Nº 09/2013 of 01/03/2013 establishing Rwanda Utilities Regulatory Authority (RURA) and determining its mission, powers, organization and functioning;

Pursuant to Law n° 24/2016 of 18/06/2016 governing information and communication technologies;

Considering the consultations from the virtual meetings, held from 6th – 21st October 2020 with different stakeholders;

Upon due consideration and deliberation in its Session of 25th February 2021.

HEREBY issues the following:

CHAPTER ONE: GENERAL PROVISIONS

Article One: Purpose of this regulation

The purpose of this regulation is to provide a regulatory framework for efficient licensing, processes and procedures in the information communication technology industry.

Article 2: Definition of terms

In this regulation, the following terms have the following meanings:

1. **Active infrastructure:** electronic infrastructure and facility that includes among others Base (Transceiver Stations (BTS), antenna feeder, cables, Radio Access Network, microwave, radio equipment, billing platform, switching Center, router, Base Station Controller (BSC) or Radio Network Controller, optical fiber and back borne transmission network);
2. **ccTLD***:* Country Code Top Level Domain;
3. **Cross-subsidization**: is the situation whereby the cost of offering some ICT licensed services are covered through excess revenues earned from other ICT licensed services;
4. **Customer Premises Equipment (CPE)**: End-use system including private network elements connecting the customer applications to the access line;
5. **Electronic communication:** any means of distribution, transmission or reception of information through electronic communication network, writings, visual images, sounds, data and any other nature of information or a combination thereof exchanged in whole or in section by means of a wire, radio and any other electronic communications means;
6. **General authorization**: refers to a legal document granted to any person fulfilling the requirements and intending to install electronic communications networks or provide services thereof using digital platforms;
7. **GMPCS**: Global Mobile Personal Communications by Satellite;

8. **Individual license**: refers to a license that is subject to specific obligations and whose holder provides public network or use radio frequency;

9. **Interoperability**: the ability of equipment and systems to function with the network and with other terminal equipment and systems enabling a subscriber to access communications services;

10. **IXP**: Internet Exchange Point;

11. **License**: a legal document issued by the Regulatory Authority which authorizes the licensee to carry out the activity specified in the document under the conditions prescribed therein;

12. **Licensee:** a person who holds a license issued by the Regulatory Authority under this regulation;

13. **License applicant**: a person who files an application for issuance of a license under this regulation;

14. **Managed services** : A business model in which a licensed operator outsources some of the functions including operations, network resources and maintenance services;

15. **Modification**: is any change in the license to respond to the need of the licensee or to comply with the regulatory obligation;

16. **Passive infrastructure**: non-electronic infrastructure and facility that includes among others physical sites, building shelters, towers or masts, electric power supply, battery backup, grounding/earthling, air conditioning, security arrangement, poles, ducts and trenches;

17. **Person:** an individual or organization which is legally permitted to enter into a contract, and be sued if it fails to meet its contractual obligations;

18. **Private Electronic Communications Networks**: a system for the provision of electronic communications service or any portion of electronic communications service, including the construction, maintenance or operation of the system, by a person for the exclusive use of that person and not for resale, directly or indirectly;

19. **Regulatory Authority**: Rwanda Utilities Regulatory Authority;

20. **Standard license**: refers to a license that is subject to general obligations and by which the provision of services draws from networks and services by the holders of individual license;

21. **Startup:** An early-stage company which is less than three(3) years of the existence that is trying to solve problems with scalable, often innovative and technology-oriented business solutions;

22. **Subsidize**: refers to transfer of money or assets by a licensee to other business whether they fall within the regulated or the non-regulated area, and make available the services or products to the public at affordable prices;

Article 3: Scope of this Regulation

This Regulation applies to Electronic Communications including all services that fall under the following categories:

1. Network infrastructure services;
2. Network services;
3. Application services;

Article 4: Objectives of this Regulation

The main objective of this Regulation is to:

1. Help industry players in expanding into new market segments by promoting fair and effective competition;
2. Protects the interests of consumers and promote the availability of regulated services;
3. Ensure that technical standards are in compliance with the requirements provided in this regulation;
4. Set out rights and obligations of licensees as well as easy entry into the market and operations;
5. Promote, fair competition and licensing based on open, objective, non-discriminatory and transparent rules, requirements, terms and conditions;
6. Facilitate the introduction of new modern services and the expansion of existing services into modern and innovative quality services delivered at reasonable and affordable cost;
7. Stimulate technological innovation and the development of new services;
8. Ensure the viability and benefits of new competitive entry into the electronic communication market through increased competition;
9. Ensure the fulfilment of essential requirements including security of networks operations, maintenance of networks integrity, interoperability of networks, and data protection;
10. Establish a regulatory framework for the transformation and operation of Network Infrastructure, network services and application services that are efficient, effective, reliable and affordable and which correspond to the changing consumer demand and technology.

CHAPTER II: LICENSING REGIME

Section one: License types

Article 5: Types of licenses

The Regulatory Authority issues the following of three (3) types of licenses:

1. Individual License;
2. Standard license;
3. General Authorization.

Article 6: Individual license

The individual license is issued, through auctioning to a National Telecommunication Operator (NTO) who demonstrates financial and technical capacity to establish and operate a telecommunication network across the entire geographical boundary of Rwanda.

The Regulatory Authority sets out the specific requirements to be fulfilled and issues an individual license.

The renewal of the individual license is carried out through negotiation processes while complying with all laws and regulations into force.

The individual license allows the license holder to establish and provide both telecommunication infrastructure and services across the country.

Article 7: Standard license

The standard license is issued to operators providing services in connection with communications or services meant for operating radio frequency.

Article 8: General authorization

The general authorization is granted to oparators for :

a) equipment installation and maintenance;
b) importing and supplying electronic communications equipment;
c) managed services or
d) any other service as may be determined by the Regulatory Authority.

The managed service providers are oparators operating under a business model whereby the licensee outsources some of the functions such as operations, resources management and maintenance.

Prior to outsourcing any service, all licensed operators must seek authorization from the Regulatory Authority.

Section 2: Categories of operators entitled to licenses

Article 9: Categories of Licenses

The Regulatory Authority issues the licenses to operators who provide the following services:

1. Network infrastructure;
2. Network services; and
3. Application services;

Article 10: Network Infrastructure Providers license

Network Infrastructure Provider licensees must own, operate or provide any form of active infrastructure or passive physical infrastructure used for carrying or providing services, applications and content.

The following must apply to all licensees under this category:

1. The licensee must construct, install, maintain, protect and operate the network infrastructure associated with transmission, reception and switching of electronic communications or electronic signal as approved by the Regulatory Authority and as described in the license;

2. Network Infrastructure Provider is standard licensed depending on the scope of operations and nature of the service;

3. The licensee must not operate or provide any new network infrastructure not described in the license except with prior approval by the Regulatory Authority;

4. Depending on the nature of business, the terms and conditions of the License stipulates further details of operations.

Article 11: License for Network Service Provision

Network Service Provider licensees provide services to those using electronic communications networks. This license is granted to applicant who intends to provide electronic communication services to the public.

The following must apply to all licensees under this category:

1. The licensee must provide services to be carried in the networks and covers voice, data, Internet, text messaging and other services;
2. The licensee must provide basic connectivity and bandwidth to support a variety of applications services. These include but not limited to cellular mobile services, customer access services and mobile satellite services;
3. Customer premises equipment (CPE) for providing services on commercial basis are included in the description of network service;
4. Network Service Provider is standard licensed depending on the scope of operations and nature of the service;
5. Depending on the nature of business, the terms and conditions of the License must stipulate further details of operations.

Article 12: Application service provider license

Application service provider licensees are non-network-infrastructure-based service providers and they must provide all forms of applications to end users using the infrastructure of network service provider licensees. The applications may be based on speech, sound, data, text, images as well as other ICT services that deliver a particular function to the end user.

The following must apply to all licensees under this category:

1. The licensee provides electronic communication services. The access to these services can be through establishment and operation of private facility and network or procurement and reselling of services from licensed facility and/or network service providers;
2. Depending on the nature of business, the terms and conditions of the License must stipulate further details of operations.

Article 13: Service providers subject to a license application

The application service license is issued to any applicant who provides electronic communication as a service which provide ICT as the main service and falls under any one of the following criteria:

1. License applicant providing information or communication services through the use of ICT;
2. License applicant who provide software or ICT as a service to other sectors where regulators do not have licensing regimes for that service;
3. License applicant whose services compete directly or indirectly with services regulated by the Regulatory Authority;
4. Any other criteria that may be defined and determined by the Regulatory Authority, from time to time, in the general interest of the consumers.

Article 14: Application for non-objection certificate of services regulated by another statutory Regulatory Body.

The application service provider license is not issued to the service provider who is regulated by another statutory regulatory body.
Any applicant falling under this category must request a non-objection certificate from the Regulatory Authority to ensure compliance with the provisions of ICT law and other relevant laws and regulations.
The list of applicant may include but not limited to:

1. Digital financial service providers;
2. Gaming service providers and;
3. Electronic health service providers;
4. Any other area that may be determined by the Regulatory Authority from time to time in the general interest of consumers.

Article 15: Application for non-objection certificate of services regulated by the Regulatory Authority

The applicant intending to operate in the services regulated by the Regulatory Authority must apply for the non-objection certificate if the applicant:

1. Has an annual turnover below twenty million Rwandan Francs (20,000,000 RWF) over an initial operating period of five (5) years;
2. Targets to serve a population coverage below hundred thousand (100,000) people;
3. Whose services may not affect national security;
4. Whose services do not have an impact on confidentiality and privacy of his/her customers; and
5. Any other criteria that may be determined by the Regulatory Authority from time to time in the general interest of consumers.

If the applicant does not fall under one of the conditions above, the applicant must apply for an Application Service Provider License.

Article 16: Frequency spectrum assignment

The radio frequency spectrum is assigned in accordance with the relevant legal instruments in place. Radio Spectrum availability and allocation must be considered independently.

The issuance of one of the licenses provided for in this regulation does not automatically guarantee spectrum allocation to the applicant, when the same was not required in the initial license application.

Article 17: Application for multiple categories of license

The applicant who intends to apply for more than one category of license is allowed to do so, provided that the applicant must:

1. Facilitate direct interconnectivity between all network operators;
2. Ensure interoperability between Licensed service providers' systems where applicable.

Article 18: Prohibition of cross-subsidization

Cross-subsidization between the various license categories is not allowed except where it is approved by the Regulatory Authority.

The Licensee must not subsidize or cross-subsidize, or permit itself to be subsidized or cross-subsidized or give or receive undue preference to or from, any of its associated businesses or persons as concerns the provision of the Licensed Services and/or any other Licenses granted to the Licensee by the Regulatory Authority.

The Licensee must maintain necessary records to evidence resource transfers between its associated businesses or persons. The Regulatory Authority may at its discretion require the Licensee to submit this or other information related to the licensed businesses to satisfy the Regulatory Authority that no cross-subsidy is taking place.

Where the Licensee is suspected to be cross subsidizing, the Regulatory Authority issues a written notice requiring the Licensee to make representations in respect of the suspected cross subsidization within thirty (30) days.

In the event that the Regulatory Authority determines that cross-subsidization has occurred, the Regulatory Authority gives a written notice to the Licensee; setting out the necessary action the Licensee must take in order to remedy the breach.

The Licensee must keep separate accounts for different business segments.

Article 19: Technological Innovation Facilities

Specific regulations for facilitation and promotion of startup innovative applications and solutions are dealt with separately with other legal and regulatory instruments.

A person intending to provide a technological innovation must comply with the relevant regulatory requirements.

CHAPTER III: GENERAL AND SPECIFIC REQUIREMENTS TO APPLY FOR EACH CATEGORY OF LICENSE

Article 20: General requirements

A person who wishes to apply for a license must submit an application letter addressed to the Director General of the Regulatory Authority accompanied by the following documents :

a) A copy of certificate of company registration;
b) Information on technical description of the services to be provided;
c) Company profile;
d) The geographical area of activity;
e) ID or passport of the legal representative of the company;
f) Information on the shareholding structure;
g) A detailed Business Plan; and
h) Any other information that the Regulatory Authority may considers necessary.

<u>Article 21</u>: Specific requirements of Network infrastructure services license

In addition to the general requirements set out under article 20 of this regulation, an applicant for this license must submit the following:

a) Technical specifications for interoperability and compatibility of the system with other systems;
b) Network roll-out plan and its implementation schedule;
c) Physical presence in Rwanda;
d) Description of the network with 5 years roll out targets;
e) Technical specifications of the equipment to be used within the network;
f) Availability of emergency services;
g) Network plan and construction;
h) Network diagrams and explanations;
i) Targeted customers;
j) Value Proposition;
k) Details of Management Team showing technical and business Management capability;
l) Financial capability supported by proof of funding from a financial institution;
m) Indication of resources that may be required from the Regulatory Authority;
n) Innovation and new technology rollout plan
o) Proof of payment of application fees;

Further detailed requirements may be requested depending on the nature of network infrastructure service.

<u>Article 22</u>: Specific requirements for Network service provider license

In addition to the general requirements set out under article 20 of this regulation, an applicant for this license must submit the following:

a) Network roll-out plan and its implementation schedule;
b) Physical presence in Rwanda;
c) description of the network services with five (5) years roll out targets;
d) technical specifications of the equipment to be used within the network;
e) Availability of emergency services;
f) Network plan and construction;
g) Network diagrams and explanations;
h) Target customers;
i) Value Proposition;
j) Details of Management Team showing technical and business Management capability;
k) Financial capability supported by proof of funding from a financial institution;
l) Indication of resources that may be required from the Regulatory Authority;
m) Innovation and new technology rollout plan
n) Proof of payment of application fees;

Where applicable and upon approval of the license, the applicant will pay within thirty (30) days, the performance bond equals to two hundred thousand United State Dollar (USD 200,000), prior the collection of that license." However, Network Service Providers ISPs Tier 2 may be required to pay performance bond equals to forty thousand United State Dollar (USD 40,000).

Further detailed requirements may be requested depending on the nature of network service.

Article 23: Specific requirements for application services license

In addition to the general requirements set out under article 20 of this regulation, an applicant for this license must submit the following:

a) Value Proposition;
b) Indication of resources that may be required from RURA;
c) Payment of Application Fees;
d) Technical Specifications, System architecture including details of its features;
e) Performance bond equals to ten thousand United State Dollar (USD10,000) where applicable, submitted not later than one-month prior the collection of the license;
f) A detailed document describing operational and maintenance modalities of all IT systems. In addition to provide:
    - Location of infrastructure or facilities;
    - outsourced operations or systems and details of those involved;
    - information on specific levels of access and maintenance;
g) A detailed document describing the availability of backup facilities, contingency plans like disaster recovery plans for facilities and incident management plan;
h) documentation that demonstrates that the applicant has the technical experience and capability to manage the system;
i) Quality of Service metrics of the application, such as availability, Mean Time To Repair (MTTR), system up time, including its terms and conditions and customer contract template with the clients;
j) A description of internal control mechanisms, including, IT infrastructure, policies and procedures, which the applicant has established to comply with the existing Laws and Regulations;
k) Availability of emergency services;
l) Agreement between Telecoms, Banks, Digital Financial Services, and ATM services providers if any.

Further detailed requirements may be requested depending on the nature of application service.

Article 24: Specific Requirements for Managed Services

An applicant must submit an application letter addressed to the Regulatory Authority accompanied by the following documents:

1. A copy of certificate of company registration provided by the competent authority in Rwanda;
2. Detailed information on with technical description of the services to be provided;
3. Company profile;
4. ID or passport of the legal representative of the company;
5. Information on the shareholding structure;
6. Payment of Application Fees;
7. Any other information that the Regulatory Authority may considers necessary.

In addition to conditions set out under this regulation, approval of all partnerships between a licensee and any third party service provider are subject to the following conditions:

a. Specify the service to be provided;
b. Fulfil all technical, operational, safety and other conditions in accordance with applicable laws, regulations and standards;

c. Demonstrate the financial capacity and readiness to perform all related activities applied for and to provide safe and reliable services;
d. Have sufficient employees with appropriate technical qualifications to perform its activities;
e. Present Contracts and any related Service Level agreement with licensees.

Article 25: Specific requirements for application of non-objection certificate

A person who wishes to apply for a non-objection certificate must submit an application letter addressed to the Director General of the Regulatory Authority accompanied by the following documents:

a) A copy of certificate of company registration;
b) Information on technical description of the services to be provided;
c) Company profile;
d) The geographical area of activity;
e) ID or passport of the legal representative of the company;
f) Detailed Business Plan;
g) Template agreement showing the terms and conditions for end-users;
h) Template of Service Level Agreements showing Quality of Services (QoS) and Quality of Experience (QoE) Metrics;
i) Consumer complaint handling policy;
j) Any other information that the Regulatory Authority may considers necessary.

Article 26: Fees structure

Under this regulation , the licensee must pay the fees as follows :

1. A non-refundable application fee once upon submission of the application;
2. License fee before acquiring the approved license;
3. Regulatory Fees which is paid according to the Regulatory Board decision governing the matter;
4. The Annual contribution fee to the Universal Access Fund where applicable,;
5. Any other fees that maybe required by the Regulatory Authority.

Application and License Fee Structure is detailed in annex one (1) of this regulation.

Article 27: Procedure for issuance of the license

Upon receipt of a license application, the Regulatory Authority must notify within five (5) working days the applicant who has not submitted the required information.

After a notification, the applicant is allowed to submit missing information within next ten (10) working days.
Where the applicant fails to submit the missing information within that time frame, the Regulatory Authority must inform the applicant in writing its reasons for the rejection and must avail the documents submitted with the application for collection by the applicant

Where the applicant does not collect the documents, the Regulatory Authority may dispose them off at the lapse of twenty-five (25) working days from the date of request for missing information.

The Regulatory Authority must evaluate the application by examining documents and other information submitted by the applicant.

If the Regulatory Authority determines that the license application is complete, it issues the relevant license within three (3) months.

The period for issuance of the individual license depends on the negotiation process and outcome thereof.

Article 28: Criteria for license issuance

The Regulatory Authority issues a license to an applicant that:

1. Fulfils all technical, operational, safety and other conditions in accordance with applicable laws, regulations, and standards;
2. Has demonstrated the technical and financial capacity and readiness to perform all related activities applied for and to provide safe and reliable services in accordance with all applicable laws, regulations and standards;
3. Has sufficient employees with appropriate qualifications to perform its activities;
4. Has demonstrated the capacity to provide accounting reports and other financial information required by the Regulatory Authority in the format and detail prescribed;
5. A copy of a criminal record certificate issued by the competent authority for management team.
6. Has paid the required fees set by the Regulatory Authority;
7. Has demonstrated that he/she will comply with all applicable laws and regulations;
8. Any other substantive criteria that the Regulatory Authority is needed to ensure a fair and equitable process.

Where required, the Regulatory Authority may require an applicant for network services and application service providers to provide a performance bond from a bank or insurance company registered in the Republic of Rwanda and when the Regulatory Authority so requires, the licensee must comply with the performance bond requirements.

The performance bond must be provided within thirty (30) days from the date of notification by the Regulatory Authority of the requirement of the performance bond.

Article 29: Performance bond requirements and its application

Performance bond is required to the license applicant who must pay the loss incurred by the end user or consumer as a result of the failure of the licensee to meet the license obligations.

The performance bond must reflect at list the following:

a. The financial institution providing the security;
b. The value of the security required to cover the regulatory arrears and protect consumer's rights;
c. Its duration;
d. The enforcement provisions of the performance bond specifying that the payment should be unconditional and claimable on demand upon request by the Regulatory Authority.

Under this Regulation, the performance bond applies to any applicant who:

a. Provides subscription services to end users;
b. Retailers of internet services;
c. Provide pre-paid services to end users;

d. Any other applicant that may be considered as such by the Regulatory Authority.

Article 30: Reasons for rejection of license application

The Regulatory Authority rejects a license application when it is found that:

1. The application is incomplete and the requested information is not submitted within the deadline set by the Regulatory Authority;
2. The applicant failed to demonstrate that it could meet the criteria for license issuance;
3. The applicant failed to demonstrate the technical or financial capacity to carry out the licensed activities;
4. The applicant does not have right, title and interest to conduct the license activities;
5. The applicant failed to comply with the Regulatory Authority orders, information requests, or other decisions during a prior previous license term;
6. The applicant failed to pay the application fees set by the Regulatory Authority;
7. One of the shareholders of the applicant or the management, whose previous license issued by the Regulatory Authority has been revoked;
8. The applicant is in, or about to enter in liquidation;
9. Any other reason specified by the Regulatory Authority.

Article 31: Validity of the license

The validity of each category of License is provided in annex one (1)of this regulation.

Article 32: License Renewal

The licensee may apply for the license renewal at least ninety (90) working days before the expiration of the valid license and the procedure for the renewal of license is the same as that applicable to the granting of the original license.

The licensee must provide an execution report of the business plan and must not have arrears with the Regulatory Authority.

The Regulatory Authority must attempt to make its decision not later than thirty (30) working days prior to the expiration of the valid license.

The license renewal application must not be considered if the applicant is not complying with the requirements of this regulation.

The period for renewal of the individual license depends on the negotiation process and outcome thereof.

Article 33: License transfer

A licensee must not assign, transfer, and dispose of any rights or obligations without prior written approval of the Regulatory Authority.

Such approval is granted after consideration of the matter and if the proposed transferee fulfills all the conditions for being granted the relevant license.

Article 34: Procedures for license transfer

A license transfer proceeding is initiated by the licensee who submits a written request to the Regulatory Authority on the mentioned subject.

The Regulatory Authority looks into the matter and give relevant feedback not later than thirty (30) working days.

These proceedings are conducted in the same manner as review of a license application.

The transferee must comply with the same license conditions as the licensee.

The duration of the license, the license terms and conditions must remain the same, unless the license transferee requests a license modification as part of the transfer proceedings.

Article 35: License modification

A license modification may be initiated by the Regulatory Authority or by the licensee.

The Regulatory Authority may modify a license before its expiration term when it determines that a modification of the license is needed in order to respond to:

1. The inability of the licensee to comply with existing laws and regulations;
2. To overcome events beyond licensee's control (e.g., force majeure, major facility failures);
3. Change in ownership or organizational structure of the licensee.

Article 36: Suspension of license

The Regulatory Board must take decision to suspend any category of license upon one of the following reasons:

1. The licensee has falsified any record required to be maintained pursuant to this regulation or any other relevant laws and regulations;
2. The licensee committed a second violation of the same fault and in the same year; or
3. Financial insolvency of the company.

The maximum duration of the suspension is three (3) months. If the licensee has not corrected the violations that attracted the suspension at the lapse of this period, the license is duly revoked by the Regulatory Board; Suspension is terminated only upon a finding that the following requirements have been satisfied:

i. The maximum duration of the suspension has elapsed;
ii. The licensee has addressed all violations upon which the suspension was based;
iii. The licensee has submitted a written request to the Regulatory Authority to terminate the suspension after having settled the reason for suspension.

If the licensee is not satisfied by the taken decision, he or she may appeal to the authority who took the decision to request for review of decision within seven (7) working days from the date of commencement of suspension.

Article 37: Revocation of License

The Regulatory Board may revoke a license before its expiration validity when it determines that such revocation is needed in order to respond to:

1. Licensee failure to comply with license terms and conditions;
2. Failure of the licensee to provide the Regulatory Authority with monitoring and reporting data required by the license or failure to cooperate with the Regulatory Authority inspection and audits;
3. Licensee who submitted false or deliberately misleading data or information to the Regulatory Authority in response to the request or in response to the Regulatory Authority's monitoring, reporting, inspection or audit requirements;
4. The Licensee abandonment of license activities;
5. Liquidation of the company;
6. The Licensee's failure to provide the Regulatory Authority timely access to its facilities for audit and inspection purposes and to licensee records;
7. Licensee's failure to pay the Authority's regulatory fees or Universal Access fund.

Any applicant whose license has been revoked is ineligible for to any other re-application.

Any applicant whose license has been suspended, revoked, or not renewed pursuant to this regulation must not be considered as a licensee and must not conduct any activity as such until the license has been reinstated or a new license has been issued by the Regulatory Authority.

The licensee must within fourteen (14) days from the date of revocation of the license return the license to the Regulatory Authority.

Article 38: Procedure for license revocation

A license revocation proceeding is conducted in the following manner:

1. The Regulatory Authority commences a license revocation proceeding by sending written notice to the licensee advising the licensee of the commencement of a revocation proceeding, and requiring licensee to file a response;
2. If the licensee contests the revocation or fails to respond to the Regulatory Authority notice, the Regulatory Authority will hold a hearing on the license revocation;
3. If during the course of the revocation proceedings, the licensee cures the violation that gave rise to the revocation proceeding, the Regulatory Board may terminate the license revocation proceeding;
4. The Regulatory Authority may convert a proceeding, in its sole discretion, to license enforcement, modification or transfer proceeding.

Article 39: Appeal on license matters

Where the applicant is not satisfied with any decision of the Regulatory Board, he/she may appeal to the competent court of law.

The Regulatory Board's decisions remains effective until a final judicial decision is given on appeal.

Article 40: Requirements to provide and maintain information

A licensee is required to provide and maintain such information as will enable the Regulatory Authority to carry out its functions under the law in such manner and at such times as the Regulatory Authority may request.

The Regulatory Authority must have the right to request the licensee to submit quarterly reports, statistics and other data for purposes of effective supervision and enforcement of the terms and conditions of the license.

Article 41: Power to inspect

An authorized officer of the Regulatory Authority can at all times enter any premises on which a holder of a license or his agent has installed or is installing an electronic communication system or equipment to inspect the equipment or system installation and witness any associated tests.

CHAPTER IV: MAPPING OF EXISTING LICENSES TO CURRENT LICENSES

Article 42: Migration of existing licenses to this regulation

The migration of licenses of this regulation to the new licensing regime is guided by the categorization provided for in this Regulation.

Article 43: Implementation of this regulation

The adoption of this regulation has no prejudice to the duration of existing licenses nor interfere with the existing frequency and numbering assignment.

To ensure the level playing field, the adoption of this regulation must apply to both existing and new licensees and in a manner that ensures that none of the parties is disadvantaged.

Article 44: Conversion to the current licensing regime

In observance of the principle that existing licensees must not be worse off on migration or conversion to the current regulation, the following must be upheld:

1. All licensees must apply for conversion indicating licenses they are converting to and the Regulatory Authority assess the application for validity;
2. Conversion or migration to the current regime is mandatory and must commence once this regulation is officially published.

The conversion period is limited to one (1) year.

Where the existing licensee, in converting the existing single license has to obtain multiple licenses, the applicant must comply with the provisions of this regulation.

Article 45: Faults and Related Sanctions

Any person who contravenes the provisions of this regulation is liable to an administrative fine provided for in the Law N° 24/2016 of 18/06/2016 governing Information and Communication Technologies.

CHAPTER V: TRANSITIONAL AND FINAL PROVISIONS

Article 46: Transitional period

All licenses granted or issued under any regulation prior to the commencement of this regulation are referred to as existing licenses and remain valid until the expiration of the give period of validity.

Article 47: Repealing provision

All prior provisions contrary to this regulation are hereby repealed.

Article 48: Commencement

This regulation comes into force on the day of its publication in the official gazette of the Republic of Rwanda.

Kigali, on 25/02/2021

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Dr. Ignace GATARE
Chairperson of the Regulatory Board

ANNEX ONE: APPLICATION AND LICENSE FEES

CATEGORY 1: NETWORK INFRASTRUCTURE LICENSE				
Type of Facility	Application Fees	License Fees	Type of License	Duration
International Network Facilities				
International Gateway Systems (Satellite or Terrestrial: This includes Satellite Earth Stations, Microwave Radio Links, Submarine Cables, Switching Centres, Nodes and Servers and others.	USD 5,000	USD 100,000	Standard	15 Years
Cable Transit Systems: This includes transmission network facilities established to transit through the country.	USD 2,000	USD 15,000	Standard	15 Years
Uplink satellite Broadcasting Stations	USD 1,000	USD 10,000	Standard	15 Years
Temporally Uplink satellite Broadcasting Stations	USD 100	USD 200	Standard	2 Months
National Network Facilities License				
Network Infrastructure Providers: Fixed and Mobile Network Facilities This includes Cable Links, Microwave Radio links, Switches, Routers, Exchanges, Nodes and Servers, Radio Base Stations mobile switches, Base Station Controllers, Mobile Switches, Servers, Nodes.	USD 5,000	USD 100,000	Standard	15 Years

CATEGORY 2: NETWORK SERVICE PROVIDERS				
Type of Facility	Application Fees	License Fees	Type of License	Duration
MVNO (Mobile Virtual Network Operator) (voice/data/text)	USD 2,000	USD 40,000	Standard	15 Years
GMPCS (Global Mobile Personal Communication by Satellite) Services (Voice, Data, Text)	USD 2,000	USD 15,000	Standard	15 Years
ISP Tier One (Satellite Services, Satellite Hub Systems, Fiber networks)	USD 2,000	USD 40,000	Standard	15 Years

ISPs Tier Two (unlicensed band…)	USD 1,000	USD 10,000	Standard	5 years
CATEGORY 3: APPLICATION SERVICE PROVIDERS				
Type of Facility	Application Fees	License Fees	Type of License	Duration
API Aggregators and vendors; e-ticketing services, Virtual Applications Services; Value Added Services (VAS); Application services competing with public utilities (e.g : digital ride hailing services operators), E-Commerce (e-commerce platforms).	USD 100	USD 1,000	Standard	5 Years
Retail ISP, VOIP, Pay phone, Tracking Systems (Voice, Data, Text)	USD 500	USD 5,000	Standard	5 Years
Data Centers (not having ISP License or NTO License: Tier One and Two)	USD 100	USD 2,000	Standard	5 years
Data Centers (not having ISP License or NTO License): Tier Three and Four and plus	USD 1,000	USD 10,000	Standard	15 Years
Non-Objection Certificate (digital financial services , gaming service, health service …)	N/A	N/A	General Authorization	N/A
General Authorization: 5 Years				
Managed Services Installation, maintenance and management of electronic communication equipment, services, applications and contents	USD 500	USD 2,500	General authorization	5 Years
National Telecommunication Operator (NTO) License				
National Telecommunication Operator	Negotiation for renewal and auctioning for new entrant	Individual	N/A	N/A
Fixed Network Operator (FNO) (Voice/Data/Text)	Negotiation for renewal and auctioning for new entrant	Individual	N/A	N/A
Services and Activities not defined in this annex				

New technologies or services	The Regulatory Authority will assess and decide on applications of new technologies or services which are not defined in this annex .

<u>ANNEX 2:</u> MODEL NETWORK INFRASTRUCTURE PROVIDER LICENSE

REPUBLIC OF RWANDA

P.O. BOX 7289 KIGALI
PHONE: +250 252 58 45 63
FAX: +250 252 58 45 63

Email: info@rura.gov.rw
KIGALI

NETWORK INFRASTRUCTURE PROVIDER LICENSE

GRANTED TO

……. (name of the licensee)

LICENSE Nº ……../NIP/LIC/ICT/RURA/2021

The Regulatory Board;

Pursuant to REGULATION No …./R/EC-ICT/RURA/2021 OF ……. /……. /2021 GOVERNING LICENSING ELECTRONIC COMMUNICATION
Hereby grants the following License of Network Facilities Provider to **"…. ……. . "**

I. PART 1: DEFINITIONS

In this license and its appendices, the following terms have the following meanings:

1. **Associated Company**: any company that is a subsidiary or a holding company of the Licensee, or a subsidiary of a holding company of the Licensee;
2. **Cellular Frequency Bands**: radio-frequency spectrum allocated in the National Radio Frequency Plan for Mobile Cellular systems;
3. **Customer**: any person, except any Other Operator, who has entered into an agreement with the Licensee, or any Service Provider of the Licensee, for the provision of any of the Services and Applications and Content.

4. **Effective date**: the date on which a license takes legal effect;
5. **Emergency Service**: the service provided by the Licensee alone or in conjunction with any other operator by means of which emergency calls are made free of charge from users of the network to

national, regional or local emergency organizations which include the police and security forces, fire brigade and ambulance services, medical and veterinarian services, environmental disaster agencies, whether or not such emergency organizations are owned and managed on a private or public basis and may include any additional emergency services which the Licensee may provide in its own discretion;

6. **Essential Infrastructure**: any circuit, switch, tower, site, duct or other facility owned or operated by the Licensee Which Other Operator wishes to use and for which there is no feasible technical or economic substitute or other satisfactory environmental solution;
7. **Interconnection**: direct or indirect physical or logical linking of networks for the purpose of enabling a User of one such network to communicate with a User of the other network or to make use of services available on the other network;
8. **Interconnection Agreement**: an agreement concluded between the Licensee and any Other Operator recording the commercial, technical and financial arrangements made between them in respect of the Interconnection of their respective networks;
9. **Leased Capacity**: any dedicated point-to-point link, or any dedicated capacity on such a link, between two points provided by the Licensee to a Customer or Other Operator for the purpose of carrying signals;

10. **License Period**: means the valid of the license including any extension ;
11. **Main Switching Centre**: the switching center by means of which the Licensee switches or routes signals conveyed or to be conveyed on the network;
12. **Net Operating Revenue**: the total amounts invoiced to Users and all sums otherwise receivable by the Licensee or its Service Providers in respect of the provision of Licensed Network infrastructure after deduction of any applicable sales or other indirect taxes, any amounts payable to Other Operators for services rendered, any amounts in relation to the sale or lease entered into, provided that due regard is made for any duplications in the calculation of the amounts;
13. **Network Infrastructure**: a physical infrastructure principally used for carrying Services and Applications and Content services. The infrastructure may include but is not limited to fixed links, radio communication transmitters, satellites and satellite stations, submarine cable, fiber/copper cable, towers, switches, base stations. International Network Infrastructure connected to national network to facilitate seamless connectivity and conveyance of Services and Applications and Content;

14. **Network Termination Point**:
    (i) the apparatus installed in a User's premises at which the network ends at which the User is provided with access to the network and may attach Terminal Equipment in accordance with the conditions of this License or
    (ii) in the case of a Mobile Cellular System or other wireless-based system, the air interface specifying the radio path between the radio equipment operated by the Licensee and a User's handset;
15. **Numbering Plan**: the plan issued from time to time by the Regulatory Authority for the allocation and use of Numbers in Rwanda;
16. **Number Portability**: a service enabling a User of telecommunications services, whether or not IP-based, to retain his existing Number without impairment of quality, reliability or convenience when switching from one telecommunications service provider or IP service provider to another, in accordance with any regulations or any guidelines issued under the Law;
17. **Other Operator**: any other person licensed to operate network infrastructure and/or to provide applications and content Services which are available for use by the public in terms of the Law;

18. **Quality of Service Standards**: the quality of service standards as may be prescribed by the Regulatory Authority in relation to licensed Network Infrastructure.
19. **Radio License**: a license issued by the Regulatory Authority to the Licensee under which the Licensee is assigned and authorized to use particular bands of radio frequency spectrum under relevant regulations;
20. **Signal**: any signs, sounds, text, images, information or data of any kind sent, or to be sent, for conveyance by means of a telecommunication system;
21. **Terminal Equipment**: any lawful telecommunications equipment which is intended to be connected, by wired or wireless means, to a Network Termination Point and used by a User in order to send and/or receive signals by means of the Licensed System;
22. **User**: a person who uses any network infrastructure provided by the Licensee whether or not he has entered into an agreement with the Licensee, or any Service Provider of the Licensee, for the provision of any of the network infrastructure.

PART 2: SCOPE OF LICENSE, VALIDITY, RENEWAL AND APPLICABLE FEES

2. SCOPE OF THE LICENSE

2.1. The Regulatory Authority hereby authorizes the Licensee to:

Construct, install, maintain and operate the network infrastructure as approved by the Regulatory Authority and described in an appendix to the license. The licensee must not operate or provide any new network infrastructure not described in the appendix except with prior approval by the Regulatory Authority.

2.2. Where the licensee wishes to introduce a new network infrastructure and or make changes to the existing network Infrastructure, he/she must provide to the Regulatory Authority with such information as may be required by the Regulatory Authority within a specified period.

ADDRESS OF THE LICENSEE

……

P.O. BOX: .....

Tel.: ……
E-mail: …….

3. DURATION AND RENEWAL OF THE LICENSE

3.1 The License is valid for a period of …….. years, from its effective date, unless replaced or revoked by the Regulatory Authority.

3.2 Not less than ninety (90) working days before the expiry of the existing license, the license holder may apply to the Regulatory Authority for renewal of a license and the procedure for the renewal of license is the same as that applicable to the granting of the original license. The License may be renewed by the Regulatory Authority upon request of the Licensee, provided the Licensee has:

3.3 Complied with the requirements of the License terms and conditions and with the applicable laws and regulations, and;

3.4 The Regulatory Authority, on the basis of a written application and subject to the fulfilment of all requirements, issues the license or reject the licensee's application within three (3) months from the date of receipt of the corresponding application.

3.5 If Licensee does not submit a request for renewal within the specified period, then this License is terminated on the expirationof its then-current term.

3.6 The procedure for renewal is done in accordance with the relevant laws and Regulations

4. MODIFICATION OF THIS LICENSE

The Regulatory Authority may introduce reasonable modifications relating to terms and conditions to this License to take account in particular of:

i. changes in technology;
ii. changes in market conditions in the Licensed Territory;
iii. misconduct of Licensee during the previous term of the License that may not, in RURA's opinion, justify non-renewal but that does justify modification of the renewed License;
iv. changes in relevant legislation, regulations, orders, decrees, decisions or guidelines; and/or
v. changes in international conventions, protocols and agreements applicable to Rwanda.

5. CONTRIBUTION AND FEES

5.1 The Licensee is in respect of the National Network Infrastructure License required to pay the following fees:

i. Application fee of …….. US dollars/Rwanda Francs (USD/Frw ……);
ii. Initial license fee of …… Rwandan Francs/USD (Frw/USD…… ….);
iii. The Annual Turnover generated during the preceding year as stipulated in the board decision or other laws and regulation in force;
iv. Annual Frequency fees in the case the licensee is assigned the frequencies;
v. The Licensee is required to pay any other fees, taxes, contributions and charges that may be or from time to time become payable in accordance with the applicable laws and regulations of Rwanda;

5.2. Calculation of Net Operating Revenue is made in accordance with a format prescribed by the Regulatory Authority and is verified and certified annually by an independent audit firm of international standing engaged and remunerated by the Licensee, subject to independent verification by the Regulatory Authority or any expert appointed by the Regulatory Authority. Any final settlement to be made due to underpayment or overpayment revealed as a result of the verification process is made within 30 (thirty) days of issue of the auditor's certificate or of completion of the independent verification.

5.3. The fees are non-refundable and the Regulatory Authority reserves the right to revise them from time to time.

5.4. In the event of a default by the licensee in payment of any fee, the licensee pays interest on the overdue sum calculated on a daily basis from the date of invoicing. The interest is the prevailing prime rate.

6. UNIVERSAL ACCESS AND SERVICE LEVY

The Licensee is required to pay the amount prescribed by the Regulatory Authority as Universal Access and Service Levy.

PART 3: PRIMARY OBLIGATIONS

7. OBLIGATION TO PROVIDE NETWORK INFRASTRUCTURE

The Licensee provides Network Infrastructure within Rwanda and offers such to any person who in the Regulatory Authority's view reasonably demands these infrastructures in any place within Rwanda.

8. ROLLOUT OBLIGATIONS

8.1 The Licensee rolls out its network infrastructure as committed to under its application and described in Schedule 1. Failure to fulfil the rollout obligations attract administrative penalties as may be determined by the Regulatory Authority.

8.2 In addition to rollout obligations in Paragraph 8.1 , the Licensee is required to submit annually to the Regulatory Authority of the updated roll-out plans on the provision of Network infrastructure and that, such updated roll-out is subject to inspection and approval by the Regulatory Authority.

9. PUBLIC SERVICE OBLIGATIONS

9.1 The Licensee provides its network infrastructure for purposes of use for Emergency Services giving priority to the support activities required to overcome the emergency.

9.2 The Licensee complies with the National Emergency Service Co-ordination Programme.

9.3 The Regulatory Authority may exempt the Licensee from any of the Public Service Obligations.

10. SERVICE OBLIGATIONS FOR PEOPLE WITH DISABILITIES

The Licensee consults with the Regulatory Authority from time to time about the arrangements relating to:

i. The supply of, and the provision and maintenance of services in respect of, apparatus designed or adapted to meet the reasonable demands of people with disability, including apparatus with amplification facilities; and
ii. Participation in any advisory group established to address the needs of people with disability which participation was at the request of the Regulatory Authority.

11. SUBSCRIBER REGISTRATION

The Licensee maintains a register of its entire customers as prescribed by the Law.

12. TECHNICAL STANDARDS

The Licensee complies with any Regulations and any directions issued under the Law in relation to technical standards for communications equipment to be used within the Licensed Network infrastructure.

13. INTERNATIONAL OBLIGATIONS

The Licensee must at all-time observe the provisions of International Telecommunications Conventions which Rwanda is party to.

PART 4: TARIFFS, COST ACCOUNTING AND REPORTING

14. TARIFFS

14.1. The Licensee must submit to the Regulatory Authority, in writing, a proposal in respect of tariffs it intends to apply for the network infrastructure. In determining the tariffs, the Licensee must follow the principle of cost orientation.

14.2. The Licensee must offer the network infrastructure at rates no higher than the prevailing approved tariffs.

14.3. The Licensee must ensure that the tariffs are sufficiently unbundled so that, unless otherwise agreed in writing by the Regulatory Authority, the customer is not required to pay for infrastructures which are not used for the particular service requested by any Customer.

14.4. The Regulatory Authority reserves the right to introduce a general price cap control regime or any other price control mechanism.

15. ACCOUNTING SEPARATION

The Licensee complies with Accounting Separation Guidelines issued by the Regulatory Authority.

16. RECORDS AND REPORTING

16.1. The Licensee manages all of its finances relating to its provision of Licensed Services in accordance with International Accounting Standards ('IAS'), as established and periodically amended by the International Accounting Standards Board and separately and distinctly from those of:

i. any other communications operations it may carry on outside of Rwanda; and
ii. any facilities other than Licensed network infrastructure that the Licensee may carry on within or outside Rwanda.

16.2. The Licensee must keep written records in comprehensive detail relating to the Licensed Network Infrastructure, including:

i. identification of the name, type, location and specifications for all significant network elements, including Switching Centres, transmission points, interconnection points, network operations centres and customer care and support centres; and
ii. the performance of its Network (including performance against any Quality of Service standards established from time to time by the Regulatory Authority).

16.3. The Regulatory Authority has reasonable access to the Licensee's records, personnel and property to enable the Regulatory Authority to carry out effective supervision and enforcement of the conditions, and may request additional information in writing from time to time from the Licensee.

16.4. The Licensee must , on reasonable written notice, permit any person duly authorized by the Regulatory Authority to enter any of the Licensee's premises or other facilities for the purposes of inspecting and testing equipment; reviewing and making copies of technical information and records, network performance statistics, operational, marketing, pricing and financial records and such other technical and operational data as may be required by the Regulatory Authority and otherwise to ensure that the Licensee is complying with the conditions and the Law or to investigate breaches or alleged breaches by the Licensee.

16.5. All accounts and records of Licensee must be kept in secure locations and secure formats designed to ensure their preservation. Network and performance related data must be retained by the Licensee for a minimum of one (1) year, and all financial records must be retained by the Licensee for a minimum of five (5) years.

16.6. The Licensee submits a Financial and Operational Report ('Annual Report') to the Regulatory Authority within 120 days of the completion of each of its financial years which addresses key material developments for that year. The Annual Report must be signed by an authorized representative of the Licensee, who certifies and attests to the completeness and accuracy of the information contained therein. The Annual Report contains comprehensive reporting on the following mandatory elements:

a) certified financial reports, including the Licensee's balance sheet and income statement and cash flow statements, key assumptions associated with the preparation of financial reports and material deficiencies and delinquencies in Licensee's financial reporting; and
b) operational performance metrics required by the Regulatory Authority, after consultation with the Licensee, Customer and User additions and losses, development of new service lines, functionality, capabilities and offerings, details of the Licensee's performance relative to all relevant Quality of Service standards.

16.7. The Licensee prepares and delivers to the Regulatory Authority within 14 days of the conclusion of each quarter during the License Period a report which contains such operational details as the Regulatory Authority may require, Customer and User additions and losses, new products or services, details of Licensee's performance relative to all relevant Quality of Service Standards.

16.8. The Licensee provides a written report to the Regulatory Authority within 30 days of the occurrence of any material development affecting, or which would affect, ownership, control or management of the Licensee, including developments such as:

i. any proposed change in the control of the Licensee, such as its prospective sale, disposition, bankruptcy, voluntary or involuntary insolvency, threat of insolvency, transfer of managerial or voting control;
ii. any proposed assignment of any right or obligation established by this License;
iii. any changes in key management personnel or members of the board of directors; or
iv. the filing or prospective filing of significant legal claims against the Licensee by third parties which may have a material impact on the Licensee's ownership, control, management, or financial standing.

PART 5: INTERCONNECTION, ACCESS AND WHOLESALE

17. INTERCONNECTION AND ACCESS

17.1. The Licensee has the right to Interconnect its network with the network of any Other Operator, at any technically feasible point and on fair and reasonable terms, in accordance with Interconnection Guidelines and the Act.

17.2. The Licensee develops and submits Reference Interconnection Offers for approval by the Regulatory Authority which must be made publicly available by the Licensee.

18. ACCESS TO NETWORK CAPACITY AND INFRASTRUCTURE SHARING

The Licensee offers to make network infrastructure available to Other Operators, on fair, reasonable and cost-orientated terms and in accordance with the Infrastructure Sharing Guidelines.

19. UNDUE PREFERENCE AND DISCRIMINATION

19.1. The Licensee offers to provide to Other Operators on a fair wholesale basis the infrastructures they may require from the Licensee in order to provide any retail infrastructure in competition with a retail network infrastructure offered by the Licensee from time to time to its Customers or Users.

19.2. If agreement on wholesale terms cannot be reached between the Licensee and any Other Operator who wishes to offer a retail service in competition to one that is offered by the Licensee within 30 days of the initial request, either party to the proposed agreement may refer the dispute to the Regulatory Authority, or the Regulatory Authority may require the dispute to be referred to it by issuing a notice to that effect to the parties. If a dispute is referred to, or called in by, the Regulatory Authority, the Regulatory Authority will issue a determination in respect of the terms of the arrangement in dispute taking into account all relevant facts and circumstances, and also relevant international benchmarks, and may provide for all necessary matters, including but not limited to timings, costs, pricing and billing, ordering, testing and management and dispute resolution, as it deems fit. The Licensee is bound by the determination.

19.3. The Licensee must not show undue preference to, or exercise unfair discrimination against, any User or Other Operator regarding the provision of any of the network Infrastructure or regarding Interconnection or access. The Licensee will be deemed to be in breach of this condition if it favors any business carried on by the Licensee, or by an associated company or any Other Operator, so as to place any Other Operator competing with such a business at an unfair disadvantage in relation to the provision of a competitive activity.

20. CROSS-SUBSIDIZATION

The Licensee must not cross-subsidize or subsidize any type of network infrastructure or permit itself to be subsidized. To enable the Regulatory Authority to evaluate whether any cross-subsidization or subsidization is taking place, the Licensee must record at full cost in its accounting records any material transfer of assets, funds, rights or liabilities between a part and any other part of its business, and between it and any Associated Company, and complies with any directions issued by the Regulatory Authority for this purpose.

21. ATTACHMENT OF TERMINAL EQUIPMENT

The Licensee permits the connection to the Network Infrastructure of any lawful and type-approved Terminal Equipment at any Network Termination Point.

22. MISUSE OF TRAFFIC DATA

The Licensee must not make use of network or traffic data, traffic profiles or any other data of any nature which become available to it directly or indirectly as a result of entering into Interconnection arrangements or otherwise as a result of carrying communications, in any way which, in the reasonable opinion of the Regulatory Authority , would unduly prefer the interests of any business carried on by the Licensee or a Service Provider of the Licensee, or place any Other Operator at an unfair disadvantage.

PART 6: RADIO, NUMBERING AND QUALITY OF SERVICE

23. RADIO

This license does not guarantee granting of a frequency spectrum. Where applicable, the Licensee applies with full justification, for the use of frequency spectrum. The Licensee's frequency assignment and Terms and Conditions, must be as contained in the radio license granted by the Regulatory Authority.

24. NUMBERING

24.1. The Licensee must comply with the Numbering Plan and any Regulations or guidelines issued to that effect in relation to the use of Numbers and of other codes within its network, including the payment of fees related to the administration of numbers.

24.2. The Licensee must not allocate to Users any Number(s) other than those within a numbering block allocated to it by the Regulatory Authority for the purpose of terminating Calls on the network and is, for the intended use, consistent with the Numbering Plan.

24.3. The Licensee manages the Numbers allocated to it efficiently and with a view to conserving them as a national scarce resource.

24.4. The Regulatory Authority may, after consulting the Licensee and other Stakeholders, direct that the Licensee put in place arrangements to enable Number Portability in accordance with any Regulations or any guidelines issued by the Regulatory Authority.

24.5. Neither the Licensee nor any of its Users acquires any proprietary right in a Number or a range of Numbers. The Licensee must not sell or purport to sell any Number or range of Numbers to Other Operators, and may not assign or transfer a Number to any person other than the intended User of that Number without the prior written consent of the Regulatory Authority.

24.6. The Regulatory Authority may, on reasonable notice, require the Licensee to return any unused Numbers or number blocks to the Regulatory Authority, and may, after consulting the Licensee and others, vary the Numbering Plan.

25. QUALITY OF SERVICE STANDARDS

1.1. The Licensee complies with any rules, Industry Code of Conduct and any guidelines issued from time to time by the Regulatory Authority in relation to Quality of Service Standards.
1.2. The Licensee must ensure that the licensed network infrastructure is operational at all times.
1.3. The Licensee is liable to paying such administrative or civil penalties for failure to meet quality of service requirements and standards as may be prescribed by the Regulatory Authority.

PART 7: CONSUMER PROTECTION

26. CONSUMER PROTECTION

26.1. The Licensee lodges , within 30 (thirty) days of the License Date or any such time as may be determined by the Regulatory Authority, with the Regulatory Authority for approval, all its standard forms of agreement with Customers and makes these agreements available to its Customers.

26.2. The Licensee adopts a Code of Practice describing how it deals with Users. The Code is made publicly available by filing with the Regulatory Authority, by publication on the Licensee's website and by its delivery to Customers and prospective Customers at the time of service activation. The Code is also be provided to Users on request.

26.3. The Code of Practice provides guidance to Users on at least the following matters:

i. The form in which a complaint may be made and the response to be provided; and
ii. The rules for resolution of disputes between the Licensee and a User, including notification to the User that he may, if not satisfied by the Licensee's response, request that the dispute be referred to the Regulatory Authority.
iii. Any and all complaints and disputes which cannot be resolved between the Licensee and a customer may be referred to the Regulatory Authority either by the Licensee or the customer.

27. PRIVACY AND CONFIDENTIALITY

Except as provided for elsewhere in this License and as necessary to comply with the Law, the Licensee must protect the privacy of all customers and treats information provided by any customers to the Licensee as confidential unless the customer has consented in writing to the Licensee to the use or disclosure of such information by the Licensee or a third party.

28. INDEMNITY

The Licensee indemnifies the Regulatory Authority against any claims for liability or damage which may occur as a result of the Licensee complying with any condition under this License or lawful direction given by the Regulatory Authority.

29. RWANDA PREFERENCE

29.1. In the implementation of its operations under the License, including without limitation, the purchase of equipment, construction, installation and delivery of facilities or any part thereof, the Licensee gives preference to:

i. materials and products made in Rwanda; and
ii. service agencies located in Rwanda and owned by Rwanda citizens or bodies corporate established under applicable Rwanda company laws which are majority owned by Rwanda citizens, to the maximum extent possible and in a manner consistent with safety, efficiency and economy of its operations.

29.2. In all phase of its operations under this License, the Licensee gives preference in its employment practices to Rwanda citizens, to the maximum extent possible and in a manner consistent with safety, efficiency and economy of its operations.

29.3. The Licensee must train Rwanda citizen employees and enable such citizens to qualify for advancement in both managerial and technical areas of the Licensee's operations under this License.

29.4. The Licensee submits to the Regulatory Authority an annual report outlining strategies on the implementation of this paragraph.

PART 8: ENFORCEMENT AND GENERAL PROVISIONS

30. FORCE MAJEURE

30.1. The Licensee is not held in contravention of this License if and to the extent that the contravention arises from an event of Force Majeure. The Licensee's obligations, to the extent necessary, is suspended while the event of Force Majeure continues.

30.2. The Licensee informs the Regulatory Authority as soon as reasonably practicable upon becoming aware of the existence of any Force Majeure event or circumstances likely to lead to such event. The Licensee has the burden of proving the existence of a Force Majeure event.

31. ENFORCEMENT AND PENALTIES

31.1. The Regulatory Authority monitors the Licensee's adherence to, and compliance with these conditions, the rules, directions, decisions or guidelines issued by the Regulatory Authority.

31.2. The Regulatory Authority may impose any penalty it deems fit in the event of breach of any of the Conditions.

32. AMENDMENTS

The Regulatory Authority may vary or amend any condition, provided that the Regulatory Authority provides in these circumstances the Licensee with reasonable notice of its intentions to do so.

33. ASSIGNMENT OF LICENSE

33.1. The Licensee must not assign, sub-license, transfer, cede or otherwise dispose of this License, or any rights derived under it, in favor of any third party without the prior written approval of the Regulatory Authority.

33.2. Any direct or indirect change in the control of a significant interest in the Licensee, including a change arising through one or more sales, transfers, assignments or disposals, or one or more modifications of the voting rights associated with any shares in the Licensee, is deemed an unlawful assignment of this License and in breach of the terms and conditions unless first approved in writing by the Regulatory Authority. A 'significant interest' means twenty per centum (20%) or more of the shares in the Licensee then in issue or twenty per centum (20%) or more of the voting rights at any general meeting of the Licensee.

34. REVOCATION

Without limiting the general application of the Law and relevant Regulations, the Regulatory Authority may, on service of written notice on the Licensee, revoke this License if the Licensee:

i. fails to pay any fees or penalty due under this License;
ii. fails to remedy any material breach of any condition within thirty (30) days of having received written notice of the same; or
iii. is liquidated.

35. LOCATION AND ADDRESSES

35.1. The location of the Licensee's network infrastructure, management centre and primary office must be situated within Rwanda.

35.2. The License Notice must be placed in a conspicuous place at the Licensee's office at all times.

35.3. The Licensee's office for the purposes of this License must be as described on the License Notice, which must not be changed without providing prior written notice to the Regulatory Authority.

36. MISCELLANEOUS PROVISIONS

36.1. The Licensee observes and abided by all laws and regulations of Rwanda.

36.2. The Licensee must comply with any other guidelines or instructions which may be issued under the law from time to time.

36.3. The Regulatory Authority may direct the Licensee and any Other Operators to design a code of practice, in a form to be approved by the Regulatory Authority, concerning content carried over network infrastructure and such code of practice must be binding on the operators after approval by the Regulatory Authority.

36.4. The Regulatory Authority reserves the right to impose special conditions to facilitate the execution of its mandate under the Laws in place.

36.5. All written notices to the Regulatory Authority are marked for the attention of the Director General.

37. EFFECTIVENESS OF THE LICENSE

The present License becomes effective from... …./…. …/2021…. and is valid until ……/……./2021…..

Issued at Kigali on ……/……/2021…….

The Licensor
Represented by:
.....
…….(name)
Chairperson of the Regulatory Board

APPENDIX I: ROLL-OUT PLAN

Services	Status	Capacity	Plan /Time Frame	Area

APPENDIX II: _____ SHAREHOLDING STRUCTURE

S/NO	NAME	NATIONALITY	PERCENTAGE (%)
1.			
2.			
3.			

Seen to be attached to the License Nº ……

…….

(name)

Chairperson of the Regulatory Board

<u>ANNEX 3:</u> MODEL NETWORK SERVICE PROVIDER LICENSE

REPUBLIC OF RWANDA

P.O. BOX 7289 KIGALI
PHONE: +250 252 58 45 63
FAX: +250 252 58 45 63
Email: info@rura.gov.rw
KIGALI

NETWORK SERVICE PROVIDER LICENSE

GRANTED TO

……. (name of the licensee)

LICENSE Nº ……../NSP/LIC/ICT/RURA/2021

LICENSE Nº ……../NSP/LIC/ICT/RURA/2021

The Regulatory Board of the Rwanda Utilities Regulatory Authority,

Pursuant to REGULATION No …./R/EC-ICT/RURA/2021 OF ……. /……. /2021 GOVERNING LICENSNIG ELECTRONIC COMMUNICATION

Hereby grants the following License of Network Facilities Provider to **“ ……. . ”**

1. **ADDRESS OF THE LICENSEE**

   ……

   P.O. BOX: .....

   Tel.: ……
   E-mail: …….

2. DEFINITIONS

In this license and its appendices, the following terms have the following meanings:

1. **Regulatory Authority** : the Rwanda Utilities Regulatory Authority;
2. **Initial Licence Fees** : the once upfront fee paid to the Regulatory Authority for the grant of the License;
3. **Network Services :** a service for the carrying of information in the form of speech or other sound, data, text or images, by means of guided or unguided electromagnetic energy but does not include services provided solely on the customer side of the network boundary;
4. **Regulatory fee** : an annual charge paid to the Regulatory Authority for providing licensed services.
5. **Effective date**: the date on which a license takes legal effect;
6. **License Period**: the period , means the valid of the license including any extension ;

3. SCOPE OF THE LICENSE

The Regulatory Authority hereby authorizes the Licensee to: operate and provide Network Services as contained in Appendix I.

4. DURATION AND RENEWAL OF THE LICENSE

4.1. The License is valid for a period of …….. years, from its effective date, unless replaced or revoked by the Regulatory Authority.

4.2. Not less than …….months before the expiry of the existing license, the license holder may apply to the Regulatory Authority for renewal of a license and the procedure for the renewal of license is the same as that applicable to the granting of the original license. The License may be renewed by the Regulatory Authority upon request of the Licensee, provided the Licensee has:

i. Complied with the requirements of the License terms and conditions and with the applicable laws and regulations, and;
ii. The Regulatory Authority, on the basis of a submitted application and subject to the fulfilment of all requirements, issues the license or reject the licensee's application within three (3) months from the date of receipt of the corresponding application.
iii. If Licensee does not submit a request for renewal within the specified period, then this License will be terminated on the expiration of its then-current term.
iv. The procedure for renewal is in accordance with the relevant laws and Regulations

5. OWNERSHIP AND CORPORATE OBLIGATION

5.1. The Licensee's shareholding structure is as contained in Appendix II;

5.2. The Licensee must comply with the following conditions on ownership:

i. To notify the Regulatory Authority in writing of any changes to its ownership and control structure.
ii. To notify the Regulatory Authority of any joint venture into which it enters with any:
    a. person; or
    b. entity holding a license issued by the Regulatory Authority

6. APPLICABLES FEES

In respect of National Network Services License, the Licensee must pay to the Regulatory Authority the following:

a. Application fee of .....
b. Initial license fee .....
c. The regulatory fee as provided for by the board decision and other relevant laws and regulations in force.

7. AUDITED ACCOUNTS

The Licensee is required to prepare and submit to the Regulatory Authority audited accounts on an annual basis within ninety (90) days immediately after end of the financial year of the Licensee.

8. REQUIREMENTS TO PROVIDE INFORMATION

8.1. The Licensee must maintain financial records in accordance with good accounting practices and must upon request make the books and records of accounts available for inspection by the Regulatory Authority,

8.2. The Licensee must submit to the Regulatory Authority on an annual basis within 90 days immediately after the end of the financial year of the Licensee the following information:

i. annual reports;
ii. audited financial statements
iii. geographical and population coverage;

9. MODIFICATION

9.1. Modification of the terms and conditions of this License together with the Appendices may only be made by written agreement between the Licensee and the Regulatory Authority;

9.2. The Licensee and the Regulatory Authority give due consideration to any proposal for modification made by the other party.

10. COMPLIANCE WITH THE LAW AND REGULATORY REQUIREMENTS

10.1. The Licensee must comply with laws and regulations into force.

10.2. The Licensee must comply with all conditions stipulated in this license and other regulatory requirements provided under Regulations and Rules issued by the Regulatory Authority.

11. QUALITY OF SERVICE

11.1 The Licensee must comply with Regulations issued by the Regulatory Authority on quality of service.

11.3.

11.2.The Licensee must ensure that the licensed network service is operational at all times.

11.3.The Licensee is liable to paying such administrative or civil penalties for failure to meet quality of service requirements and standards as may be prescribed by the Regulatory Authority

The Licensee must submit annually to the Regulatory Authority updated roll out plans on the provision of its services.

12. INDEMNITY

The Licensee must indemnify the Regulatory Authority against any claims or proceedings arising from any breach or failings on the part of the Licensee in relation to this license.

13. SAFETY MEASURES

In respect of services operated, maintained or offered under this license, the Licensee must take proper and adequate safety measures to safeguard life or property, including exposure to any electrical emissions or radiations emanating from equipment or installation from such operations.

14. PROVISION OF NETWORK SERVICES

14.1 The Licensee must provide network services in accordance with the applicable recommendations of the International Telecommunication Union, other International standardisation bodies and any relevant regulations;

14.2 The Licensee must provide network services as contained in Appendix I within a period of six (6) months from the effective date of this license;

14.3 The Licensee must not be required to provide network services where in the Regulatory Authority's view it is not reasonable to require the Licensee to provide the services, including, but not limited to the following circumstances:

i. Where it is beyond the Licensee's control;
ii. Where it would expose any person engaged in provision of the Network services to undue risk to health or safety; or
iii. Where it is not reasonably practicable.

15. CONFIDENTIALITY OF CUSTOMER INFORMATION

The Licensee must not disclose any information about any of its customers to any third party except to the extent that such information is required:

a. For the purposes of debt collection by the Licensee from the customer concerned;

b. For statistical or research purpose provided the information is in such a way that it does not link to a particular customer;
c. By the Licensee's auditors for the purpose of auditing the Licensee's accounts;
d. By the Licensee's attorney(s) in connection with any potential, threatened or actual litigation between the Licensee and the customer concerned;
e. By the Regulatory Authority for the purpose of performing its functions under the Acts;
f. By an order of the court in respect of legal proceedings between the customer and another party pending in court.

16. UNIVERSAL SERVICE OBLIGATIONS

The Licensee must comply with the Universal Service/access obligations as may be provided for under the laws of Rwanda.

17. HUMAN RESOURCE DEVELOPMENT

17.1 The Licensee must submit to the Regulatory Authority the Human Resource Development Plan outlining strategies towards empowerment of its local staff.

17.2 The Licensee must annually furnish the Regulatory Authority the report of implementation of the Human Resource Development Plan.

17.3 The Licensee must facilitate participation of its technical staff in training within or outside Rwanda.

18. EFFECTIVENESS OF THE LICENSE

The present License becomes effective from... **…./…. …/….** and is valid until **……/……./…..**

Issued at Kigali on ……/……/…….

The Licensor
Represented by:

.....
…….(name)
Chairperson of the Regulatory Board

<u>APPENDIX I:</u> **ROLL-OUT PLAN**

Services	Status	Capacity	Plan /Time Frame	Area

APPENDIX II: _____ SHAREHOLDING STRUCTURE

S/NO	NAME	NATIONALITY	PERCENTAGE (%)
1.			
2.			
3.			

<u>ANNEX 4:</u> MODEL APPLICATION SERVICES PROVIDER LICENSE

REPUBLIC OF RWANDA

P.O. BOX 7289 KIGALI
PHONE: +250 252 58 45 63
FAX: +250 252 58 45 63
Email: info@rura.gov.rw
KIGALI

APPLICATION SERVICES PROVIDER LICENSE

GRANTED TO

……. (name of the licensee)

LICENSE Nº ……..../ASP/LIC/ICT/RURA/2021

The Regulatory Board of the Rwanda Utilities Regulatory Authority,

Pursuant to REGULATION No …./R/EC-ICT/RURA/2021 OF ……. /……. /2021 GOVERNING LICENSING ELECTRONIC COMMUNICATION

Hereby grants the following License of Network Facilities Provider to **“ ……. . ”**

1. **ADDRESS OF THE LICENSEE**

   ……

   P.O. BOX: .....

   Tel.: ……
   E-mail: …….

2. DEFINITIONS

In this license and its appendices, the following terms have the following meanings:

1. **Application Services Provider** : Application service provider licensees are non-network-infrastructure-based service providers and they must provide all forms of applications to end users using the infrastructure of network service provider licensees. The applications may be based on speech, sound, data, text, images as well as other ICT services that deliver a particular function to the end user. The reselling of electronic communication services to end users;

2. **Regulatory Authority** : Rwanda Utilities Regulatory Authority

3. **License Period:** means the valid of the license including any extension ;

3. SCOPE OF THE LICENSE

The Regulatory Authority hereby authorizes the Licensee to operate in Rwanda and provide Application Services as contained in Appendix I - Roll out Plan.

4. DURATION AND RENEWAL OF THE LICENSE

4.1. The License is valid for a period of ……, from its effective date, unless replaced or revoked by the Regulatory Authority.

4.2. Not less than three (3) months before the expiry of the existing license, the license holder may apply to the Regulatory Authority for renewal of a license and the procedure for the renewal of license is the same as that applicable to the granting of the original license. The License may be renewed by the Regulatory Authority upon request of the Licensee, provided the Licensee has:

a. Complied with the requirements of the License terms and conditions and with the applicable laws and regulations, and;

b. The Regulatory Authority, on the basis of a submitted application and subject to the fulfilment of all requirements, issues the license or reject the licensee's application within three (3) months from the date of receipt of the corresponding application.

c. If Licensee does not submit a request for renewal within the specified period, then this License must be terminated on the expiration of its then-current term.

d. The procedure for renewal must be in accordance with the relevant laws and Regulations

5. OWNERSHIP AND CORPORATE OBLIGATION

5.1 The Licensee's shareholding structure is as contained in Appendix II.

5.2 The Licensee must comply with the following conditions on ownership:

i. to notify the Regulatory Authority in writing of any changes to its ownership and control structure;
ii. to notify the Regulatory Authority of any joint venture into which it enters with any:

a) person; or
b) entity holding a licence issued by the Regulatory Authority.

6. APPLICABLES FEES

In respect of the Application Services Licence, the Licensee pays to the Regulatory Authority the following:

1. Application fee;
2. Initial Licence fee; and
3. The regulatory fee as provided for by the board decision and other relevant laws and regulations in force

7. AUDITED ACCOUNTS

The Licensee submits to the Regulatory Authority audited accounts on an annual basis within ninety (90) days immediately after end of the financial year of the License.

8. COMPLIANCE WITH THE LAW AND REGULATORY REQUIREMENTS

The Licensee must comply with the provision of the ICT Law and other appicable laws and regulations in force of Republic of Rwanda.

9. PROVISION OF APPLICATION SERVICES

9.1. The Licensee must provide application services in accordance with the applicable recommendations of National and International standards.

9.2. The Licensee must not be required to provide application services where in the Regulatory Authority's view it is not reasonable to require the Licensee to provide the services, including, but not limited to the following circumstances:

i. Where it is beyond the Licensee's control;
ii. Where it would expose any person engaged in provision of the application services to undue risk to health or safety; or
iii. Where it is not reasonably practicable.

10. INDEMNITY

The Licensee must indemnify the Regulatory Authority against any claims or proceedings arising from any breach or failings on the part of the Licensee in relation to this Licence.

11. REQUIREMENTS TO PROVIDE INFORMATION

11.1 The Licensee must maintain financial records in accordance with good accounting practices and must make the books and records of accounts available for inspection by the Regulatory Authority.

11.2. The Licensee must submit to the Regulatory Authority on an annual basis within 90 days immediately after the end of the financial year of the License the following information:

i. Annual reports;
ii. Audited financial statements;
iii. Geographical and population coverage.

The Licensee must annually, submit to the Regulatory Authority updated roll out plans on the provision of its services provided in terms of this license.

12. SAFETY MEASURES

In respect of services operated, maintained or offered under this License, the Licensee must take proper and adequate safety measures to safeguard life or property, including exposure to any electrical emissions or radiations emanating from equipment or installation from such operations.

13. UNIVERSAL SERVICE OBLIGATION

The Licensee must comply with the Universal Service/access obligations as may be provided for under the laws of Rwanda.

14. HUMAN RESOURCE DEVELOPMENT

14.1 The Licensee must submit to the Regulatory Authority the Human Resource Development Plan outlining strategies towards empowerment of its local staff.

14.2 The Licensee must annually furnish the Regulatory Authority the report of implementation of the Human Resource Development Plan.

14.3 The Licensee must facilitate participation of its technical staff in training within or outside Rwanda.

15.CONFIDENTIALITY OF CUSTOMER INFORMATION

The Licensee must not disclose any information about any of its customers to any third party except to the extent that such information is required:

a. for the purposes of debt collection by the Licensee from the customer concerned;
b. for statistical or research purpose provided the information is in such a way that it does not link to a particular customer;
c. by the Licensee's auditors for the purpose of auditing the Licensee's accounts;
d. by the Licensee's attorney(s) in connection with any potential, threatened or actual litigation between the Licensee and the customer concerned;
e. by the Regulatory Authority for the purpose of performing its functions;
f. by an order of the court in respect of legal proceedings between the customer and another party pending in court.

16.MODIFICATION OF LICENSE

16.1 Modification of the terms and conditions of this License together with its Appendices may only be made by written agreement between the Licensee and the Regulatory Authority.

16.2 Each party must give due consideration to the request for an amendment by the other party.

17. LICENSE TRANSFER

The Majority Shareholder of the Licensee must not transfer, assign any beneficial interest in dispose of or in any manner alienate its share ownership in the License without the prior written consent of the Regulatory Authority.

18. EFFECTIVENESS OF THE LICENSE

The present License becomes effective from... **…./…. …/** and is valid until **……/……./…..**

Issued at Kigali on ……/……/20…….

The Licensor
Represented by:

.....
…….(name)
Chairperson of the Regulatory Board

APPENDIX I: ---------- ROLL OUT PLAN

No	Type of Service	Status	Plan /Time Frame	Area
1				
2				
3				
4				
5				

APPENDIX II: _____ SHAREHOLDING STRUCTURE

S/NO	NAME	NATIONALITY	PERCENTAGE (%)
1.			
2.			
3.			

ANNEX 5: MODEL GENERAL AUTHORIZATION

REPUBLIC OF RWANDA

P.O. BOX 7289 KIGALI
PHONE: +250 252 58 45 63
FAX: +250 252 58 45 63
Email: info@rura.gov.rw
KIGALI

GENERAL AUTHORIZATION

GRANTED TO

……. (name of the licensee)

AUTHORIZATION Nº ……../GA/LIC/ICT/RURA/2021

AUTHORIZATION Nº ……..../GA/LIC/ICT/RURA/2021

The Regulatory Board of the Rwanda Utilities Regulatory Authority,

Pursuant to Regulation No …./R/EC-ICT/RURA/2021 Of ……. /……. /2021 governing Licensning Electronic Communication

Hereby grants the following Authorization to **“ …… . ”**

1. **ADDRESS OF THE LICENSEE**

……

P.O. BOX: .....

Tel.: ……

E-mail: …….

2. DEFINITIONS

In this General Authorization and its appendices, the following terms have the following meanings:

1º **Regulatory Authority** : The Rwanda Utilities Regulatory Authority established by the Law Nº09/2013 of 01/03/2013 and determining its mission, powers, organisation and functioning;

2º Authorization : the document issued by the Regulatory Authority to (……..name of licensee) to provide managed services;

5º **Authorization Period:** means the valid of the authorization including any extension ;

3. SCOPE OF THE AUTHORIZATION

The Regulatory Authority hereby authorizes the Licensee to operate in Rwanda and provide ----------services as contained in Appendix I - Roll out Plan.

4. DURATION AND RENEWAL OF THE AUTHORIZATION

a. The Authorization is valid for a period of ……, from its effective date, unless replaced or revoked by the Regulatory Authority.

b. Not less than three (3) months before the expiry of the existing license, the authorization holder may apply to the Regulatory Authority for renewal and the procedure for the renewal is the same as that applicable to the granting of the original authorization. The Authorization may be renewed by the Regulatory Authority upon request of the Licensee, provided the Licensee has:

   i. Complied with the requirements of the Authorization terms and conditions and with the applicable laws and regulations, and;
   ii. The Regulatory Authority, on the basis of a submitted application and subject to the fulfilment of all requirements, issues the license or reject the licensee's application within three (3) months from the date of receipt of the corresponding application.
   iii. If the Licensee does not submit a request for renewal within the specified period, then this Authorization must be terminated on the expiration of its then-current term.
   iv. The procedure for renewal must be in accordance with the relevant laws and Regulations

5. OWNERSHIP AND CORPORATE OBLIGATION

5.1 The Licensee's shareholding structure is as contained in Appendix II.

5.2 The Licensee must comply with the following conditions on ownership:

i. to notify the Regulatory Authority in writing of any changes to its ownership and control structure;
ii. to notify the Regulatory Authority of any joint venture into which it enters with any:
    a. person; or
    b. entity holding a licence issued by the Regulatory Authority.

6. APPLICABLES FEES

In respect of the General Authorization, the Licensee must pay to the Regulatory Authority the following:

1. Application fee
2. Initial Authorization fee
3. The regulatory fee as provided for by the board decision and other relevant laws and regulations in force

7. AUDITED ACCOUNTS

The Licensee must submit to the Regulatory Authority audited accounts on an annual basis within ninety (90) days immediately after end of the financial year of the License.

8. COMPLIANCE WITH THE LAW AND REGULATORY REQUIREMENTS

The Licensee must comply with the provision of the ICT Law and other appicable laws and regulations in force of Republic of Rwanda.

9. PROVISION OF AUTHORIZED SERVICES

9.1. The Licensee must provide authorized services in accordance with the applicable recommendations of National and International standards.

9.2. The Licensee must not be required to provide authorized services where in the Regulatory Authority's view it is not reasonable to require the Licensee to provide the services, including, but not limited to the following circumstances:

i. Where it is beyond the Licensee's control;
ii. Where it would expose any person engaged in provision of the services to undue risk to health or safety; or
iii. Where it is not reasonably practicable.

10. INDEMNITY

The Licensee must indemnify the Regulatory Authority against any claims or proceedings arising from any breach or failings on the part of the Licensee in relation to this Authorization.

11. REQUIREMENTS TO PROVIDE INFORMATION

11.1 The Licensee must maintain financial records in accordance with good accounting practices and must make the books and records of accounts available for inspection by the Regulatory Authority.

11.2. The Licensee must submit to the Regulatory Authority on an annual basis within 90 days immediately after the end of the financial year of the License the following information:

i. Annual reports;
ii. Audited financial statements;
iii. Geographical and demographical information of the users.

The Licensee must submit annually to the Regulatory Authority updated roll out plans on the provision of its services provided in terms of this license.

12. SAFETY MEASURES

In respect of services operated, maintained or offered under this Authorization, the Licensee must take proper and adequate safety measures to safeguard life or property, including exposure to any electrical emissions or radiations emanating from equipment or installation from such operations.

13. UNIVERSAL SERVICE OBLIGATION

The Licensee must comply with the Universal Service/access obligations as may be provided for under the laws of Rwanda.

14. HUMAN RESOURCE DEVELOPMENT

14.1 The Licensee must submit to the Regulatory Authority the Human Resource Development Plan outlining strategies towards empowerment of its local staff.

14.2 The Licensee must annually furnish the Regulatory Authority the report of implementation of the Human Resource Development Plan.

14.3 The Licensee must facilitate participation of its technical staff in training within or outside Rwanda.

15. CONFIDENTIALITY OF CUSTOMER INFORMATION

The Licensee must not disclose any information about any of its customers to any third party except to the extent that such information is required:

a. For the purposes of debt collection by the Licensee from the customer concerned;

b. For statistical or research purpose provided the information is in such a way that it does not link to a particular customer;
c. By the Licensee's auditors for the purpose of auditing the Licensee's accounts;
d. By the Licensee's attorney(s) in connection with any potential, threatened or actual litigation between the Licensee and the customer concerned;
e. By the Regulatory Authority for the purpose of performing its functions;
f. By an order of the court in respect of legal proceedings between the customer and another party pending in court.

16. MODIFICATION OF THE AUTHORIZATION

16.1 Modification of the terms and conditions of this Authorization together with its Appendices may only be made by written agreement between the Licensee and the Regulatory Authority.

16.2 Each party must give due consideration to the request for an amendment by the other party.

17. AUTHORIZATION TRANSFER

The Majority Shareholder of the Licensee must not transfer, assign any beneficial interest in dispose of or in any manner alienate its share ownership in the Authorization without the prior written consent of the Regulatory Authority.

19. EFFECTIVENESS OF THE LICENSE

The present License becomes effective from... **…./…. …/20….** and is valid until **……/……./20…..**

Issued at Kigali on ……/……/20…….
The Licensor
Represented by:

.....
…….(name)
Chairperson of the Regulatory Board

APPENDIX I: ---------- ROLL OUT PLAN

No	Type of Service	Status	Plan /Time Frame	Area
1				
2				
3				
4				
5				

APPENDIX II: _____ SHAREHOLDING STRUCTURE

S/NO	NAME	NATIONALITY	PERCENTAGE (%)
1.			
2.			
3.			

Kigali, on ...../……..../ 2021
Chairperson of the Regulatory Board

<u>ANNEX 6:</u> MODEL NON-OBJECTION CERTIFICATE- NOC

REPUBLIC OF RWANDA

P.O. BOX 7289 KIGALI
PHONE: +250 252 58 45 63
FAX: +250 252 58 45 63
Email: info@rura.gov.rw
KIGALI

NON-OBJECTION CERTIFICATE

GRANTED TO

……. (name of the licensee)

NON-OBJECTION CERTIFICATE Nº ……../NOC/LIC/ICT/RURA/2021

Following assessment of your request Ref: No…...dated [*insert date*], Year[*insert year*] requesting for RURA's approval to …[*insert services to be provided*]……;

Considering that your request relates to [*insert services to be provided e.g. financial services*] which falls under the responsibility and powers of the [*insert sector name* e.g. *National Bank of Rwanda*]

Rwanda Utilities Regulatory Authority (RURA) is pleased to inform you that it has no objection to your request provided that *[insert company name]* complies with the following;

1. Seeks clearance from *[insert institution name e.g. Financial or health sector*] as a regulator of the requested services;
2. Ensures protection of subscribers' data and privacy requirements;
3. Provide sufficiently segmented environment to ensure no risks are introduced by the requested interconnection/integration

You are reminded that this approval does not relieve [*insert company name*] of its duties and responsibilities as the licensee of [*insert sector in which the company operates under*] and all relevant laws and regulations governing the sector are to be strictly adhered to.

Yours Sincerely,

Director General

Seen to be attached to the regulation No 013/R/EC-ICT/RURA/2021 of 25/02/2021 governing licensing in electronic communication.

Kigali, on 25/02/2021

----------Sé----------
Dr. Ignace GATARE
Chairperson of the Regulatory Board